

26STCV04713 26STCV04713

County: los-angeles

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Case Number: 26STCV04713 Hearing Date: July 1, 2026 Dept: 732

Hilda Martinez v. Kia America, Inc., et al.

Wednesday, July 1, 2026

CASE NUMBER: 26STCV04713

OPPOSED

Defendant Kia

America, Inc.'s Motion for Protective Order

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiff Hilda Martinez ("Plaintiff") purchased a 2025 Kia Sorento in February 2025, with an express written warranty. (Complaint ¶¶ 5–7.) The vehicle contained or developed defects that the manufacturer has been unable to remedy within the warranty period. (Complaint ¶¶ 8–12.)

Procedural History: Plaintiff

filed the Complaint on February 11, 2026, alleging two causes of action:

1.

Breach of Implied Warranty of Merchantability

2.

Breach of Express Warranty

Defendant

Kia America Inc. filed an answer on April 3, 2026.

Defendant

filed the present motion for protective order on June 1, 2026.

Plaintiff

filed an opposition on June 16, 2026.

Defendant

filed a reply on June 22, 2026.

Analysis

I.

MOTION FOR
PROTECTIVE ORDER

“When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order.” (Code Civ. Proc. § 2031.060, subd. (a).) The party moving for the order must make a showing of good cause to spare them from “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc. § 2031.060, subd. (b).) A party responding to interrogatories may seek a protective order upon similar terms. (Code Civ. Proc. §2030.090.)

Defendant Kia America, Inc.

(“Defendant”) seeks entry of a protective order governing discovery in this action, in which a party disclosing information would be permitted to designate it as “confidential” and thereby limit its use to litigation in the present action, and limit access to parties, their representatives, and associated persons participating in the litigation. (Proposed Order.) Per the proposed order, a party may challenge any “confidential” designation and thereby require the designating party to seek an order from the court upholding its confidential designation. (Ibid.)

Defendant argues that the protective order is necessary because the initial disclosures required by Code of civil Procedure § 871.26 implicate confidential information that would cause Defendant competitive harm if disclosed to the public. (Motion at pp. 5–8.) The motion is supported by the declaration of Defendant employee Art Mendoza, who specifically addresses the contemplated release of “[Defendant] KA’s internal warranty and pricing data, KA’s Consumer Assistance Center Case Report, KA’s Techline Assistance Case Center Report and Service Policies and Procedures.” (Mendoza Decl. ¶ 4.) Mendoza states that Defendant treats this information “as confidential proprietary information, providing limited access to this information to only certain individuals in a secure manner.” (Mendoza Decl. ¶ 5.) He states that “the handling of consumer contact and warranty repairs is a central part of KA’s business model,” and that automotive manufacturers compete with one another on the basis of customer satisfaction. (Mendoza Decl. ¶ 6.)

Mendoza states that “warranty repair and pricing data shows the amount reimbursed to a KA authorized service dealer for a specific repair,” and such amounts are competitively sensitive. (Mendoza Decl. ¶ 7.) Techline Assistance Center Case Reports likewise “contain diagnosis, repair, or other matters involving a particular vehicle or model of vehicles,” and thus contain “specific technical processes” that “are considered proprietary and confidential to KA.” (Mendoza Decl. ¶ 8.) Mendoza likewise asserts that records of communications between Defendant and its customers are also considered confidential. (Mendoza Decl. ¶ 9.)

Plaintiff Hilda Martinez (“Plaintiff”) opposes the motion, arguing that Defendant cannot seek a protective order in relation to initial disclosures required by Code of Civil Procedure § 871.26, and that any objections to disclosure under that statute have been waived by Defendant’s opting into that statutory framework. (Opposition at pp. 4–7.) Plaintiff further argues that the declaration supporting the motion is conclusory and Defendant has not shown good cause for the order sought. (Opposition at pp. 7–9.)

The state has two substantial interests in regulating pretrial discovery. The first is to facilitate the search for truth and promote justice. The second is to protect the legitimate privacy interests of the litigants and third parties. [Citation.] ‘The interest in truth and justice is promoted by allowing liberal discovery of information in the

possession of the opposing party. [Citation.] The interest in privacy is promoted by restricting the procurement or dissemination of information from the opposing party upon a showing of “good cause.” [Citations.] [Citation.] The trial court is in the best position to weigh fairly the competing needs and interests of parties affected by discovery. [Citation.]” (Stadish v. Superior Court, *supra*, 71 Cal.App.4th at p. 1145, 84 Cal.Rptr.2d 350.) A trial court must balance the various interests in deciding “whether dissemination of the documents should be restricted.” (Id. at p. 1146, 84 Cal.Rptr.2d 350.) Further, even where a motion for a protective order is denied in whole or in part, the trial court may still impose “terms and conditions that are just.”

(Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 317.)

Plaintiff has not shown that Defendant may not seek a protective order as to the documents at issue under Code of Civil Procedure § 871.26. That statute requires, in certain lemon law actions, initial disclosures of certain categories of documents within 60 days of the filing of a responsive pleading “without awaiting a discovery request.” (Code Civ. Proc. § 871.26, subd. (b).) The statute requires disclosures to the other party, but Defendant here does not seek to withhold disclosure, but to provide disclosure conditioned upon entry of a protective order permitting confidential designations. Nothing in the statute purports to limit the producing party’s right to seek a protective order upon the grounds set forth in Code of Civil Procedure § 2031.060. While Defendant by opting in to the statutory scheme under Code of Civil Procedure § 871.29 might be said to have waived objections to disclosure, again, nothing in the statute indicates that the disclosing party may not seek to limit the use of disclosed materials that are confidential in nature pursuant to a timely motion for protective order.

The motion is also supported by good cause. The Mendoza declaration does not provide mere conclusory attestations of harm (See Nativi, *supra*, 223 Cal.App.4th at p. 315), but specific identifications of the proprietary information at issue, including warranty repair and pricing data and technical fixe, and the competitive harm to be suffered by disclosure.

Plaintiff finally objects that the proposed protective order would inhibit their ability to conduct non-party

discovery. (Opposition at p. 10.) However, the protective order permits disclosure of confidential materials to “any deposition or non-trial hearing witness,” provided they are informed of the protective order and its terms. (Proposed Order, ¶ 7f.) Plaintiff has thus not demonstrated any prejudice resulting from the protective order.

The motion is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

HILDA
MARTINEZ.

Plaintiff

v.

KIA AMERICA, INC., et al.,

Defendants.

Case No.:
26STCV04713

Hearing Date: July 1, 2025

[TENTATIVE] RULING RE:

Defendant
Kia America, Inc.'s Motion for Protective Order

Defendant Kia America, Inc.'s Motion for
Protective Order is
GRANTED. .

Defendant to give notice.

Dated: July 1, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court